

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: August 27, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Alvarez vs. Sandoval 2025-01479344	Motion to Compel Arbitration <i>Vacated. See minute order dated 8/25/26.</i>
2	Avery vs. Barandiaran 2020-01159013	Motion for Entry of Judgment <i>Continued to Friday, 8/28/26, at 8:30 a.m.</i>
3	Chambliss vs. General Motors, LLC. 2024-01445277	Motion for Summary Judgment and/or Adjudication Defendant General Motors, LLC's (GM) motion for summary judgment as to the complaint of Otis Chambliss is GRANTED in its entirety. There is no opposition to the motion. GM has met its initial burden showing Chambliss does not have standing to prosecute this action under the Song-Beverly Act. See <i>C.C.P. § 437c (p) (2)</i>, and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. The names on the complaint and the Sales Agreement are different. Further the car was undisputedly purchased in the state of Missouri. See Complaint ¶ 6; Declaration of Xylon Quezada ("Quezada Decl.") at ¶ 3, Exhibit B (Retail Installment Sales Contract); Jensen Decl., at ¶ 5, Quezada Decl. at ¶ 5, Exhibit C (Certified Copy of Videoconference Deposition Transcript of Otis Chambliss Jr. conducted on January 12, 2026 p. 16:1-4 & p. 44:1-6.) As Chambliss has not opposed this motion, he has not met his now shifted burden raising a triable issues of fact with regard to the issues above. Defendant GM to file a proposed judgment. Defendant GM to give notice.
4	Clark vs. Othman 2025-01504059	Motion to Set Aside/Vacate Default <i>Vacated. See minute orders dated 8/24/26.</i>
5	Connectcomp, Inc. vs. Armstrong Supply Chains Solutions, LLC	1. Motion to Compel Arbitration 2. Case Management Conference <i>Continued to Friday, 8/28/26, at 8:30 a.m.</i>

	2026-01540328	
6	Creighton vs. Hyundai Motor America 2025-01493450	Demurrer to Complaint <i>Continued. See minute order dated 8/18/26.</i>
7	Gutierrez vs. Rivian Automotive, Inc. 2025-01533837	Motion to Compel Arbitration <i>Continued to Friday, 8/28/26, at 8:30 a.m.</i>
8	Holden vs. Royale Management Group, LLC 2026-01539035	Motion Granting Relief from Courts <i>Continued to Friday, 8/28/26, at 8:30 a.m.</i>
9	Kiani vs. Masimo Corporation 2026-01546059	Motion to Appear Pro Hac Vice <i>Continued. See minute order dated 8/24/26.</i>
10	Rivera vs. Francisco Kim DDS, Inc. 2024-01450230	Motion for Summary Judgment <i>Vacated. See notice filed 7/6/26.</i>
11	Nguyen vs. Volkswagen Group of America, Inc 2023-01362034	Motion for Attorney Fees <i>Continued. See minute order dated 8/18/26.</i>
12	Ortiz Arriaga vs. Pecarovich 2024-01435687	Application/Request <i>Vacated. See minute order dated 8/24/26.</i>
13	U.S. Bank National Association vs. Pacific Life Insurance Company 2023-01330408	1. - 2. Motion to Seal 3. Motion to Seal <i>Continued. See minute order dated 8/18/26.</i>
14	Wei vs. Sarkis	Motion to Set Aside/Vacate Default

	2025-01509812	<i>Continued to Friday, 8/28/26, at 8:30 a.m.</i>
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